TINASHE PSWARAYI
and
THE TRUSTEES OF TONDORI TRUST ONE
and
THE TRUSTEES OF TONDORI TRUST TWO
versus
DR TAKUNDA PSWARAYI
and
MASTER OF THE HIGH COURT. NO
and
CALEB MUCHECHE

HIGH COURT OF ZIMBABWE
MAXWELL J
Harare, 11 NOVEMBER 2025 & 7 January 2026

Court Application

S Chigumira, for the applicants
I Muchini, for the first respondent
Third respondent in person
No appearance for second respondent

MAXWELL J On 8th of May 2025 first respondent obtained an order declaring legally invalid, null and void *ab initio* the second and third applicants. The estate account of the late Dr Edward Manatsiregi Pswarayi DR 1438/14 confirmed by the second respondent on 5 June 2024 was revised and the estate was reopened for a fresh estate distribution account to be prepared by the estate executor in terms of the intestate laws of succession. Though the second and third respondents were cited, there was no appearance for any respondent. Only the applicant's counsel was in attendance.

On the second of June 2025 the applicants filed the present application seeking the following order,

> "1. The instant application be and is hereby granted.
> 2. The order granted by this Honorable Court under case number HCHF 930/25 is hereby set aside
> 3. The applicants be and are hereby joined to the proceedings under case number HCHF 930/25 and they are to file their Notices of opposition thereto within ten (10) days from the grant of his order.
> 4. Thereafter the matter is to proceed in terms of the applicable High Court Rules.
> 5. The first and third respondent are hereby ordered to pay costs of suit on a legal practitioner and client scale."

The first applicant deposed to the founding affidavit in which he stated that the impugned order was granted in the absence of several interested parties, despite having far reaching consequences on the said parties. He further stated that it is very unlikely that this court would have granted the impugned order if it had been made aware of the full factual context surrounding the Estate which is being administered by the third respondent

The application was opposed by the first and third respondents. They raised preliminary points separately. The first respondent raised two preliminary points.

1) The application was instituted without his authority as a beneficiary
2) The founding affidavit is full of falsehoods. The applicants lied that they were not aware of how rentals were accounted for by the executor and yet they signed a document confirming that position that all rentals for the period from 2019 backwards (apart from money that was paid to Tinashe Pswarayi and her mother Mrs Mabel Brigid Mhlanga) were rendered 1:1 by operation of that law in terms of SI 33 of 2019 in February 2023 and dishonestly did not even inform the beneficiaries.

Third respondent raised the following preliminary issues

3) Second and third applicants are not properly cited. They ought to be cited as "Trustees for the Time Being."
4) Applicants are approaching the court with dirty hands. First applicant and one Tanya Masunda are facing serious pending criminal allegations of theft of estate money. First applicant is also facing allegations of fraud.
5) Applicants placed the cart before the horse by falsely alleging that this court's 2019 judgment declared second and third applicants as estate property owners when it did not
6) Illegalities and baseless counter allegations by applicants in that Tanya Masunda who is not related to the deceased and is not an estate beneficiary falsified two trust documents under the Style Tondori Trust One and Tondori Trust Two and in connivance with the first applicant committed theft and fraud against the Estate.

On the merits, the first and third respondents vehemently refuted, controverted and strongly denied all the allegations by the applicant. On the hearing of the matter only preliminary points were addressed. This judgment is therefore on the preliminary points.

That the application was instituted without the first respondent's authority as a beneficiary.

This would have been valid if applicants instituted the application on behalf of all the beneficiaries. The first applicant stated that he was approaching the court in his capacity as a beneficiary of the Estate late Dr Edward Pswasirayi and as a trustee for the second and third applicants. He attached authorization to present second and third applicants in the extracts from minutes of a meeting of the Board of Trustees for the two trusts held on 13th of May 2025.

It is trite that *locus standi* exists when there is direct and substantial interest in the right which is the subject matter of the litigation and the outcome thereof. A person who has *locus standi* has a right to sue which is derived from the legal interest recognized by law. see *Ndlovhu* v *Marufu* HH 480/15.

As submitted for applicants a beneficiary has a right to approach the court in relation to an estate in which he is a beneficiary. He does not need the prior permission from other beneficiaries. If any other beneficiary is of the view that their rights will be affected by the order sought they can seek joinder.

I find that the application is properly before the court despite the fact that first respondent was not consulted.

That the founding affidavit is full of falsehoods.

I am not convinced that this issue qualifies as a preliminary issue. A preliminary issue is one that is likely to dispose of the matter without the consideration of the merits. In most cases preliminary issues are questions of law. Whether or not the founding affidavit is full of falsehoods is a question of fact. Its determination goes to the merits of the matter. Counsel for the first respondent is reminded of the words of MATHONSI J (as he then was) in *Telecel Zim* (Pvt) *Ltd* v *Potraz* & *Others* HH 446/15

> "Legal Practitioners should be reminded that it is an exercise in futility to raise points *in limine* as matter of fashion. A preliminary point should only be taken where firstly it is meritable and secondly it is likely to dispose of the matter …….. As points in limine are usually raised on points of law and procedure, they are the product of the ingenuity of legal practitioners."

In casu, the point raised is neither on points of law nor procedure. It is without merit and therefore fails.

That second and third applicants ought to be cited as "Trustees for the time Being."

The Trustees and not the trust are cited. This is a question of semantics that I do not find necessary to spend time on. No case authority was cited in support of the criticism to how the second and third applicants are cited. I do not find merit in this point as well.

That first applicant and another are facing serious pending criminal allegations related to the estate in question.

The pendency of criminal proceeding are not a bar to civil proceedings. The dirty hands principle is applicable to litigants who either defy a court order or make any effort to mislead the court, who act unethically or unjustly. The submissions by third respondent relate to pending criminal proceedings. He stated that applicants are jumping the gun by coming rushing to court with very dirty hands before their criminal allegations are finalised by courts of law. In my view the applicant's hands would only be dirty if they have been convicted in the criminal proceedings. It is trite that everyone is innocent until proved guilty. This point has no merit as well.

That applicants placed the cart before the horse.

This point is based on the third respondent's interpretation of the judgment by Honorable Matanda MOYO J in HH 326-19. In my view the issue goes to the merits of the main matter. It is improper to consider it as a preliminary point.

That there are illegalities and baseless counter allegations by the applicants.

As stated above, criminal allegations are not a bar to civil proceedings. On that basis the preliminary point cannot succeed. On the day of the hearing of the matter third respondent raised two more points in limine.

That the notice of set down is defective.

The setting down of opposed matters is governed by Rule 65 of SI 202 of 2021 which provides as follows,

> "65 Setting down of opposed matters
> (1) Subject to sub rule (17) of rule 59 a party seeking a set down of an exception, application to strike out and an application which is opposed shall submit to the registrar a request for a set down date and immediately notify the other party that he or she has done so
> (2) ……
> (3) Once a date becomes available for the hearing of the matter, the registrar shall in consultation with the judge to whom such matter has been allocated, allocate a date on any business day for the mater to be heard and shall give notice of set down." (underlining for emphasis)

The submission by the third respondent that the notice of set down is defective is not correct. The notice of set down is given by the Registrar after consulting the Judge to whom the

matter has been allocated. The record shows that all the notices of set down for the dates on which the matter was heard were proper. The first hearing was on 13 October 2025. The notice of hearing was issued on 9 October 2025. On 13 October 2025 the matter was postponed to 11 of November 2025. An order stating the postponement date and time was issued on the same day.

What the third respondent is complaining about is the request for a set down date that was filed by the applicants. The notice of set down is not defective as alleged. What is defective is the request for a set down date. The third respondent did not address the issue of any prejudice he suffered as a result of a request with an error that gave birth to a proper notice of set down. I am not persuaded that the request can nullify the proper notice of hearing, especially where no prejudice is stated. The preliminary point therefore fails as well.

That the matter is *lis pendens*

The law on *lis pendens* is well settled in this jurisdiction. For a plea of *lis pendens* to succeed, it must be demonstrated that the matters are between the same parties or their successors in title, concerning the same subject matter and founded upon the same cause of action. See *Manyika* v *Lebridge Investments* (*Pvt*) *Ltd* HH 305-22. The court has a discretion on whether or not to uphold the special plea of *lis pendens*. In the case of *Mabhena* v *Sibanda Associates & Anor* HHB 116-24 it was held that:

> "In exercising such discretion, the Court must consider whether the matter that is already pending will offer an efficacious remedy to the applicant or plaintiff, as the case may be, whether the end result will be similar in both matters and most importantly the possibility of contradicting judgments if both matters are to be dealt with by different judges. The factors to be considered are endless depending on the nature of the case."

The issue of *lis pendens* is mentioned in the first respondent's heads of argument. It is stated:

> "…also there are many pending High Court cases against Tinashe Pswarayi and Tauya Masunda materially related to this matter."

As stated above, the test is not whether or not there are related matters. The first respondent ought to have gone further to say the matters are between the same parties, concerning the same subject matter and founded upon the same cause of action. The citing of eight related matters does not suffice. The first respondent also ought to have addressed the issue of whether or not the pending cases offer efficacious remedies to the applicant. It would also assist the court to know when the cited pending matters were filed as compared to the granting of

the impugned order on 8 May 2025. In the final analysis, the first respondent did not satisfy the test for the defence of *lis pendens* to succeed. Counsel for the first respondent did not address the issue orally. The third respondent mentioned the issue in oral submissions. He did not provide the details to show that the requirements are met. On further probing by the Court, he referred to heads of argument. However the issue is not covered in the third respondent's heads of argument. In any event, the submission by counsel for the applicants that there are no pending matters was not disputed. He submitted that the cited matters were dismissed by the Registrar and there is a chamber application for their reinstatement that was served on the applicants on 5 of November 2025. This preliminary issue also fails.

That the Master's report is required

In oral submissions, the third respondent stated that the matter involves a deceased estate and it is mandatory to have the Master's report. In response counsel for the applicants stated that the obligation is that service of the application be effected on the Master. Further that the Master has a discretion on whether or not to file a report.

Rule 61(1)(a) of SI 202 of 2021 provides:

> "In the case of an application in connection with-
> (a) the estate of a deceased person; or
> (b) …
> A copy of the application shall be served on the Master not less than ten days before the date of set down for his or her consideration, and for report by him or her if he or she considers it necessary or the court requires such a report." (underlining for emphasis)

Counsel for the applicants is correct. The mandatory requirement is on service of the application on the Master. The issue of the report is discretionary or as directed by the Court. The certificate of service on the second respondent is filed of record. The mandatory obligation was therefore fulfilled. The point raised has no merit.

That the matter was overtaken by events

This is an issue raised in third respondent's heads of argument. It was not addressed in oral submissions. The third respondent stated that he took a decision on the basis of the alleged fraud and theft.

The third respondent relates the issue to decisions dated 7 October 2022 and 5 June 2024. The current application relates to an order dated 8 May 2025. The decisions taken prior to that order cannot be the basis for mootness of the matter. I do not find this matter meritorious.

None of the preliminary issues raised succeeded. This is a deceased estate matter. Parties are advised to eliminate issues that prevent the hearing of the matter on the merits. Parties are also encouraged to focus on the issue that is before the Court and avoid issues that are not relevant.

I make the following order:

1. The preliminary points be and are hereby dismissed.
2. The Registrar will set the matter down for hearing on merits on the next available date.

MAXWEL J…….

Whatman & Stewart Law Firm, applicants' legal practitioners
Chatsama & Partners, 1st respondent's legal practitioners
Caleb Mucheche & Partners Law Chambers, 3rd respondent's legal practitioners